

ASCII MASTER FLOW – PANEL 1/9: Why Union Territories exist and how Part VIII classifies them

CONSTITUTIONAL LOCATION

Article 1 -> States and Union Territories form the territory of India.

Part VIII -> Articles 239-241; related Articles 239A, 239AA, 239AB and 240.

RATIONALES

small size | strategic frontier/islands | national capital
| cultural/administrative history | transitional reorganisation.

CURRENT EIGHT

Andaman and Nicobar Islands | Chandigarh
| Dadra and Nagar Haveli and Daman and Diu | Delhi
| Jammu and Kashmir | Ladakh | Lakshadweep | Puducherry.

CLASSIFICATION

with legislature: Delhi, Puducherry, J&K

without legislature: the other five.

CORE IDEA one constitutional label contains deliberately unequal governance models.

ASCII MASTER FLOW – PANEL 2/9: President, Administrator and Parliament in the UT administration chain

ARTICLE 239

President administers UT through an appointed Administrator unless the Constitution or parliamentary law creates another arrangement.

ADMINISTRATOR / LIEUTENANT GOVERNOR

designation does not convert the office into a Part VI State Governor.
power depends on the exact Constitution, statute and rules.

PARLIAMENT

may legislate for any UT, including matters otherwise in the State List.

UT WITH LEGISLATURE

local Assembly + Council of Ministers operate only inside the allotted field.
Parliament retains overriding legislative competence.

ARTICLE 239A

Parliament may create Puducherry legislature/CoM by law.

ARTICLE 239B -> Administrator ordinance within the statutory legislature model.

ASCII MASTER FLOW – PANEL 3/9: Article 240 regulations, High Courts, budgets and representation

ARTICLE 240

President may make regulations for listed UTs; a regulation can amend/repeal Acts.
Its availability changes when a qualifying legislature is functioning.

ARTICLE 241

Parliament may constitute a High Court for a UT or extend another High Court's jurisdiction.

JUDICIAL MAP

Delhi has its High Court | J&K and Ladakh share one High Court
| other UTs use constitutionally/statutorily assigned High Courts.

BUDGET AND REPRESENTATION

legislature UTs have statutory/constitutional budget procedures.
Parliamentary representation follows the Constitution and representation statutes.

LIMIT direct Union administration does not mean absence of courts, elected MPs or local bodies.

ASCII MASTER FLOW – PANEL 4/9: Delhi Article 239AA: elected government inside reserved-field asymmetry

ARTICLE 239AA

NCT Assembly may legislate on State/Concurrent matters
EXCEPT public order, police and land, plus related entries.

EXECUTIVE POWER

normally co-extensive with the allotted legislative field.
Council of Ministers aids and advises LG within that field.

REFERENCE MECHANISM

LG difference route is exceptional and must not convert "any matter" into "every matter".

PARLIAMENTARY OVERRIDE

Parliament may legislate for Delhi on any subject; inconsistent local law yields as provided.

NCT IS NOT A STATE

representative government is constitutionally real but operates inside Union-capital safeguards.

ASCII MASTER FLOW – PANEL 5/9: Delhi cases, services and the operative 2023 statutory layer

GNCTD aid and advice judgment (2018)

aid/advice is the rule within Delhi's field; LG has no general independent power.

Delhi services judgment (2023)

Entry 41 services followed the representative-accountability chain
outside public order, police and land.

GNCTD AMENDMENT ACT, 2023

National Capital Civil Service Authority -> recommendation

-> LG may differ and has the statutory final decision on disagreement.

CURRENT CONTROL: 24 AUGUST 2026

the Act is treated as operative; a pending challenge is not a final invalidation.

ANSWER RULE

state the 2018 principle -> 2023 services holding -> later statute -> pending-review caveat.

ASCII MASTER FLOW – PANEL 6/9: Puducherry under Article 239A and its nominated-member design

ARTICLE 239A + GOVERNMENT OF UNION TERRITORIES ACT, 1963

statutory Assembly + Council of Ministers + Administrator.

LEGISLATIVE FIELD

defined by parliamentary law; Parliament retains UT-wide competence.

K. Lakshminarayanan (2018)

upheld Central nomination of Assembly members under the governing statute.

Nominees may vote unless the law provides otherwise.

ARTICLE 240

presidential-regulation power is unavailable while the legislature operates
and may revive during dissolution/suspension under the constitutional text.

LIMIT Puducherry is not Delhi: Article 239A statutory design != Article 239AA NCT design.

ASCII MASTER FLOW – PANEL 7/9: Jammu and Kashmir, Ladakh and the present statutory position

J&K REORGANISATION ACT, 2019

former State -> J&K UT with legislature + Ladakh UT without legislature
from 31 October 2019.

J&K ASSEMBLY

statutory legislative field and LG relationship follow the 2019 Act and rules.
Police and public order remain outside the Assembly's ordinary field.

In Re: Article 370 of the Constitution (2023)

upheld the operative abrogation result; recorded Statehood assurance
and did not set a judicial restoration date.

CURRENT: 24 AUGUST 2026

J&K Statehood not restored | Ladakh has no legislature.

Demands for Sixth Schedule/Statehood/special provisions are proposals, not law.

ASCII MASTER FLOW – PANEL 8/9: Bounded UT profiles and State-UT-NCT comparison

WITHOUT LEGISLATURE

Andaman and Nicobar -> strategic archipelago

Lakshadweep -> small island UT

Chandigarh -> capital of Punjab and Haryana

DNHDD -> merged western UT

Ladakh -> frontier UT after 2019 reorganisation.

STATE

Part VI government

State-list autonomy

Governor/CoM model

ORDINARY UT

Article 239 chain

Parliament plenary

Administrator

DELHI NCT

Article 239AA elected design

three reserved fields

LG + CoM + reference route

ACCOUNTABILITY TEST

exact field -> decision-maker -> override -> finance/staff -> court remedy.

LIMIT Administrator powers are UT-specific; title alone supplies no common rule.

ASCII MASTER FLOW – PANEL 9/9: Creation, reorganisation, current traps and qualified answer synthesis

CREATION / MERGER

Articles 2-4 and parliamentary reorganisation law can alter territory and status.
UT status is constitutional-administrative design, not a permanently fixed category.

PRELIMS FIREWALL

Article 239 = presidential administration

| 239A Puducherry enabling route | 239AA Delhi

| 239AB Delhi constitutional breakdown | 240 listed-UT regulations

| 241 High Courts | Parliament can legislate on State List for UTs.

CURRENT FIREWALL

operative statute != pending challenge outcome

| political proposal != law | office/status facts require a date.

MAINS SPINE

rationale -> classify UT -> exact Article/statute -> democratic mechanism

-> Union safeguard -> friction -> case-year control -> calibrated reform/verdict.